The area described aggregates 65 acres in Lincoln County.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permits, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

JACK O. HORTON,
Assistant Secretary of the Interior.

MARCH 16, 1973.

[FR Doc.73-5603 Filed 3-22-73;8:45 am]

[Public Land Order 5340]

[Idaho 5503]

IDAHO

Revocation of National Forest Administrative Site Withdrawal

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. The Secretary's Order of June 6, 1908, withdrawing the following described national forest land for use as an administrative site is hereby revoked:

NEZPERCE NATIONAL FOREST

BOISE MERIDIAN

Fish Creek Administrative Site

T. 29 N., R. 3 E.,
Sec. 22, SW¼NW¼, NW¼SW¼.

The area described aggregates 80 acres in Idaho County.

2. At 10 a.m. on April 21, 1973, the land shall be open to such forms of disposition as may by law be made of national forest lands.

JACK O. HORTON,
Asistant Secretary of the Interior.

MARCH 16, 1973.

[FR Doc.73-5604 Filed 3-22-73;8:45 am]

[Public Land Order 5341]

[Riverside 06454]

CALIFORNIA

Transferring Lands From National Aeronautics and Space Administration to Department of Navy (San Diego Missile Test Site)

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 FR 4831), it is ordered as follows:

1. The following described lands withdrawn by Executive Orders Nos. 8790 and 8791 of June 14, 1941, for use of the Department of the Navy, which were transferred to the jurisdiction of the Department of the Air Force by Public Land Order No. 2748 of August 8, 1962, and further transferred to the jurisdiction of the National Aeronautics and Space Administration by Public Land Order No. 3749 of July 26, 1965, are hereby transferred to the jurisdiction of the Department of the Navy:

SAN BERNARDINO MERIDIAN

T. 14 S., R. 1 W.,
Sec. 31, N½NE¼;
Sec. 32, NW¼NW¼, N½SW¼, SE¼SW¼, S½SE¼;
Sec. 33, W½W½.
T. 15 S., R. 1 W.,
Sec. 4, lots 4, 5, and 10;
Sec. 5, lots 1, 2, 3, 5, S½NE¼, SE¼NW¼, E½SW¼, SW¼SE¼, N½SE¼;
Sec. 6, lots 1, 6, 7, E½SW¼, W½SE¼;
Sec. 7, lot 1, NW¼NE¼, SE¼NE¼.
T. 15 S., R. 2 W.,
Sec. 11, lot 1;
Sec. 12, N½NE¼, NE¼NW¼.

The areas described aggregate 1,674.86 acres in San Diego County.

2. The withdrawal made by this order does not alter the applicability of the public land laws governing the use of the lands under lease, license, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

JACK O. HORTON,
Assistant Secretary of the Interior.

MARCH 16, 1973.

[FR Doc.73-5605 Filed 3-22-73;8:45 am]

Title 49—Transportation

CHAPTER I—DEPARTMENT OF TRANSPORTATION

SUBCHAPTER A—HAZARDOUS MATERIALS REGULATIONS BOARD

[Docket No. HM-107; Amdts. 173-71, 177-25]

PART 173—SHIPPERS

PART 177—SHIPMENTS MADE BY WAY OF COMMON, CONTRACT, OR PRIVATE CARRIERS BY PUBLIC HIGHWAY

Department of Defense Material Sold to a Shipper

The purpose of this amendment to the Hazardous Materials Regulations of the Department of Transportation is to permit shipment of hazardous materials sold by the Department of Defense in packagings of equal or greater strength and efficiency than those specified for hazardous materials in 49 CFR Parts 170–189.

At the present time, the Hazardous Materials Regulations Board is receiving a substantial number of requests for special permits to allow shipment of materials bought from the Department of Defense that would be other than "* * * offered by or consigned to the Departments of the Army, Navy, and Air Force of the United States Government." It has been recently substantiated that many of these materials are in packagings that meet or exceed the requirements of Parts 173 and 178. However, the packagings are marked only in conformance with military specifications that correspond to Department of Transportation specifications.

This amendment permits the Department of Defense to execute certificates to indicate that packagings meet or exceed corresponding specifications of this Department. Since this amendment imposes no added burden on any person and no discernible change is being made in the level of safety requirements for shipments to which it pertains, notice and public procedure are unnecessary.

In consideration of the foregoing, 49 CFR Parts 173 and 177 are amended as follows:

I. Part 173, Shippers, is amended as follows:

(A) In Part 173 table of contents, § 173.7 is amended to read as follows:

§ 173.7 U.S. Government material.

(B) In § 173.7, the heading and paragraph (a) are amended to read as follows:

§ 173.7 U.S. Government material.

(a) Shipments of hazardous materials offered by or consigned to the Department of Defense (DOD) of the U.S. Government must be packaged, including limitations of weight, in accordance with the regulations in this subchapter or in containers of equal or greater strength and efficiency as required by DOD regulations.

(1) Hazardous materials sold by the DOD in packagings that are not marked in accordance with the requirements of this subchapter my be shipped from DOD installations if the DOD certifies in writing that the packagings are equal to or greater in strength and efficiency than the packaging prescribed in this subchapter. The shipper shall obtain such a certification in duplicate for each shipment. He shall give one copy to the originating carrier and retain the other for no less than 1 year.

* * * * *

II. Part 177, Shipments made by way of common, contract, or private carriers by public highway, is amended as follows:

(A) In Part 177 table of contents, § 177.806 is amended to read as follows:

Sec.
177.806 U.S. Government material.

(B) In § 177.806, the heading and paragraph (a) are amended to read as follows:

§ 177.806 U.S. Government material.

(a) Shipments of hazardous materials offered by or consigned to the Department of Defense (DOD) of the U.S. Government must be packaged, including limitations of weight, in accordance with the regulations in this subchapter or in containers of equal or greater strength and efficiency as required by DOD regulations.

(1) Hazardous materials sold by the DOD in packagings that are not marked in accordance with the requirements of this subchapter may be shipped from DOD installations if the DOD certifies in writing that the packagings are equal to or greater in strength and efficiency than the packaging prescribed in this subchapter. The shipper shall obtain such a certification in duplicate for each shipment. He shall give one copy to the originating carrier and retain the other for no less than 1 year.

* * * * *

This amendment is effective June 30, 1973. However, compliance with the regulations, as amended herein, is authorized immediately.

(Secs. 831–835, title 18, United States Code; sec. 9, Department of Transportation Act, 49 U.S.C. 1657; title VI sec. 902(h), Federal Aviation Act of 1958, 49 U.S.C. 1421–1430, 1472(h), 1655(c))

Issued in Washington, D.C., on March 16, 1973.

C. R. MELUGIN, Jr.,
Acting Board Member for the Federal Aviation Administration.

KENNETH L. PIERSON,
Alternate Board Member for the Federal Highway Administration.

MAC E. ROGERS,
Board Member for the Federal Railroad Administration.

[FR Doc.73-5578 Filed 3-22-73;8:45 am]

PART 173—SHIPPERS

CFR Correction

In 49 CFR Parts 100–199, revised as of October 1, 1972, page 162, in Note 1 preceding § 173.240, line 7, the date "June 30, 1972" should read "June 30, 1973".

CHAPTER V—NATIONAL HIGHWAY TRAFFIC SAFETY ADMINISTRATION, DEPARTMENT OF TRANSPORTATION

[Docket No. 2-10; Notice 5]

PART 571—FEDERAL MOTOR VEHICLE SAFETY STANDARDS

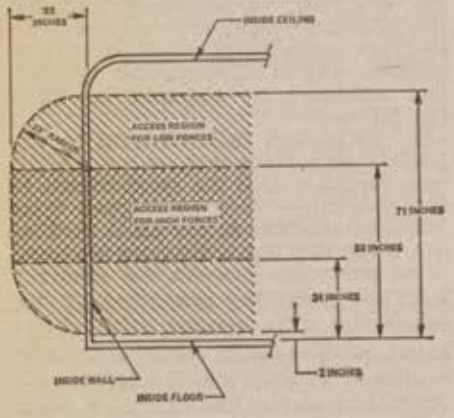
Bus Window Retention and Release; Correction

In FR Doc. 73-4257, published March 6, 1973 (38 FR 6070), the captions for Figures 3A and 3B were inadvertently transposed. The figures with their correct captions are set forth below.

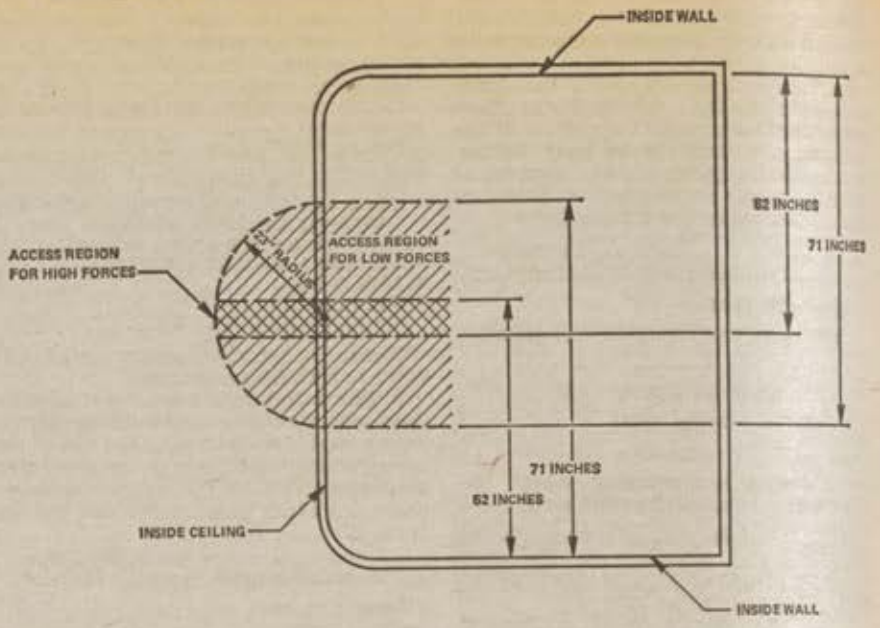
(Secs. 103, 113, 119, Public Law 89-563, 80 Stat. 718, 15 U.S.C. 1392, 1401, 1407; delegations of authority at 49 CFR 1.51)

Issued on March 16, 1973.

JAMES E. WILSON,
Acting Administrator.



3A. SIDE EMERGENCY EXIT



3B. ROOF EMERGENCY EXIT

[FR Doc.73-5526 Filed 3-22-73;8:45 am]

[Docket No. 2-15; Notice 9]

PART 571—FEDERAL MOTOR VEHICLE SAFETY STANDARDS

Child Seating Systems

This notice makes certain amendments to Motor Vehicle Safety Standard No. 213 *Child seating systems*, 49 CFR 571.213. Standard No. 213 was published March 26, 1970 (35 FR 5120), and amended September 23, 1970 (35 FR 14778), April 10, 1971 (36 FR 6895), and June 29, 1971 (36 FR 12224). This notice is based in part on notices of proposed rule making published September 23, 1970 (36 FR 14786) (Notice 5), and April 10, 1971 (36 FR 6903) (Notice 7).

The definition of "child seating system" is amended by this notice to eliminate the qualification that the device be designed to restrain children. This modification was proposed in the notice of September 23, 1970, and is adopted in the form proposed. The proposal was based on petitions which suggested the change as a means of eliminating a possible loophole in the standard, which allowed the marketing of devices which could be advertised for transporting children in motor vehicles, but which made no provision for protecting them in crashes. As a result of the amendment, all devices designed to seat children in motor vehicles must conform to the standard. One comment to the notice suggested that the language of the definition be further modified to make it clear that the vehicle seat is not included within the definition. This suggestion is not accepted. The NHTSA does not agree that the language of the definition includes or will be construed to include vehicle seats taken separately. Moreover, the vehicle seat may be an integral part of devices which would fall under the standard, and a specific exclusion of vehicle seats in the definition might create the erroneous impression that the extent that the vehicle seat is utilized determines whether such a device is subject to the standard.

The standard is hereby clarified to make explicit the prohibition against recommending seating systems for use in other than designated seating positions. The NHTSA is of the opinion that Standard No. 213 at least implicitly prohibits manufacturers from doing this. The labeling requirements of paragraph S4.1 (e) specify that the label affixed to each child seating system must specify "both the types of motor vehicles and the designated seating positions * * * in which the system is either recommended or not recommended for use." Paragraph S4.4 requires each child seating system to be designed and constructed so that when it is installed in accordance with the manufacturer's instructions it shall be restrained against movement by either a Type 1 or Type 2 seat belt assembly. These seat belt assemblies are required to be installed at designated seating positions, pursuant to Motor Vehicle Safety Standard No. 208 *Occupant crash protection* (49 CFR 571.208).

The proposal of September 23, 1970, would have amended paragraph S4.3, to require only child seats having adjustable restraint systems (as distinguished from those using stationary impact shields) to be adjustable to fit all children for which they are recommended. An NHTSA opinion to this effect was published in